

UNITED STATES DISTRICT COURT, WESTERN DISTRICT OF MICHIGAN

ANDREW J. PIGORS, Plaintiff, v. HON. JENNY L. MCNEILL, et al., Defendants.

Case No. TBD-2025

<!-- IMMUNITY DEFENSE MATRIX Pigors v. McNeill et al. United States District Court, Western District of Michigan Comprehensive analysis of all immunity and abstention defenses PRIVILEGED -- ATTORNEY-CLIENT WORK PRODUCT (Pro Se Equivalent) Generated: 2026-03-04 -->

IMMUNITY DEFENSE MATRIX

Pigors v. McNeill et al. -- WDMI Case No. [TBD]

I. JUDICIAL IMMUNITY -- DEFENDANT McNEILL

A. General Rule

Judges are absolutely immune from civil liability for actions taken in their judicial capacity, even if the action was erroneous, was done maliciously, or was in excess of authority. *Stump v Sparkman*, 435 US 349, 356-57 (1978); *Mireles v Waco*, 502 US 9, 11 (1991).

Standard (Two-Part Test):

Judicial immunity applies unless:

- * The challenged actions were **not taken in the judge's judicial capacity**; OR
- * The actions were taken in the **complete absence of all jurisdiction**.

Mireles, 502 US at 11-12.

B. Exception 1: Non-Judicial Acts

Legal Standard

An act is "judicial" when it is a function "normally performed by a judge" and the parties dealt with the judge "in [her] judicial capacity." *Stump*, 435 US at 362.

Application to McNeill

Conduct	Judicial?	Analysis	----- ----- -----	Entry of custody orders	
Yes	Normal judicial function		Entry of ex parte orders	Yes	Judicial function, even if improper
	Five ex parte orders on one day without notice		Arguable	Volume and lack of notice suggest administrative/ministerial character, not adjudicative	
	Systematic exclusion of one party from proceedings		Arguable	A judge who systematically prevents a party from being heard is not performing the judicial function -- adjudication requires hearing both sides	
	Dismissing 6 motions without reading/adjudicating		Arguable	Blanket dismissal without	

consideration may be administrative, not judicial | | Ex parte communications (if proven) | **No** |
 Ex parte communications outside formal proceedings are not judicial acts |

Strategy

- * Frame the most egregious conduct as **non-judicial in character**: When a judge systematically excludes one party and operates on a unilateral basis, the judge has abandoned the adversarial judicial function and is acting in an administrative or executive capacity.
- * Cite *Forrester v White*, 484 US 219 (1988): Administrative acts by judges (e.g., hiring/firing) are not protected by judicial immunity.
- * Argue: "A judge who enters 44% of all orders without notice to one party is not adjudicating -- she is administering a predetermined outcome."

C. Exception 2: Clear Absence of All Jurisdiction

Legal Standard

Judicial immunity is overcome when the judge acts in the "clear absence of all jurisdiction." *Stump*, 435 US at 356-57. This is a very high bar -- jurisdiction is construed broadly.

Application to McNeill

| Argument | Strength | Analysis | |-----|-----|-----| | McNeill lacked subject-matter jurisdiction over custody | **WEAK** | Family courts have clear jurisdiction over custody matters | | McNeill exceeded jurisdictional authority by effectively terminating

parental rights through ex parte orders | **MODERATE** | Family courts lack jurisdiction to terminate parental rights without TPR proceedings. If the functional effect of the orders was equivalent to termination, McNeill arguably exceeded jurisdiction | | Ex parte orders without MCR 3.207(C)(2) compliance void ab initio | **MODERATE** | If orders were entered in violation of mandatory procedural prerequisites, they may be void rather than voidable, suggesting absence of authority |

Strategy

- * Argue that the **functional termination** of parental rights (571+ days, zero contact) requires **TPR jurisdiction** with its attendant constitutional protections. McNeill exercised TPR-level authority through custody orders, exceeding her jurisdictional mandate.
- * Distinguish *Stump*: In *Stump*, the judge at least had general jurisdiction over the subject matter. Here, the specific relief granted (functional termination) exceeded the jurisdiction of the custody proceeding.

D. Prospective Injunctive and Declaratory Relief

Legal Standard

Judicial immunity does not bar suits for **prospective injunctive relief** to prevent ongoing constitutional violations. *Pulliam v Allen*, 466 US 522 (1984). Note: The Federal Courts Improvement Act of 1996 modified *Pulliam* regarding attorney's fees but preserved the injunctive relief pathway.

Application

* Plaintiff seeks prospective injunctive relief (recusal order, policy changes) -- NOT barred by judicial immunity.

* Declaratory relief establishing that Defendant McNeill's conduct violated the Constitution -- likely available even under judicial immunity analysis.

II. ROOKER-FELDMAN DOCTRINE

A. Rule

Federal district courts lack jurisdiction over cases that are "de facto appeals" of state court judgments. *Rooker v Fidelity Trust Co*, 263 US 413 (1923); *DC Court of Appeals v Feldman*, 460 US 462 (1983).

B. Four-Part Test (*Exxon Mobil Corp v Saudi Basic Industries Corp*, 544 US 280 (2005))

Rooker-Feldman applies only when:

- * The federal plaintiff **lost in state court**;
- * The plaintiff **complains of injuries caused by the state court judgment**;
- * The federal complaint **invites federal court review and rejection** of the state court judgment;
- * The state court judgment was **rendered before** the federal suit was filed.

C. Application

| Element | Analysis | Conclusion | |-----|-----|-----| | Lost in state court |
 Partially -- adverse orders entered | Met | | Injuries caused by judgment | **DISTINGUISH:**
 Injuries caused by the *process*, not the judgment outcome | Arguable -- frame carefully | |
 Invites review/rejection of state judgment | **DISTINGUISH:** Not asking federal court to
 change custody -- asking court to declare the *process* unconstitutional | Arguable -- frame
 carefully | | Judgment rendered before federal suit | Yes | Met |

D. Strategy to Overcome Rooker-Feldman

KEY DISTINCTION: Plaintiff does not ask the federal court to:

- * ? Change the custody arrangement
- * ? Award Plaintiff custody
- * ? Reverse the state court's factual findings
- * ? Review the merits of the custody decision

Plaintiff DOES ask the federal court to:

- * ? Declare that the *process* used to enter orders violated the Constitution
- * ? Declare that 44% ex parte orders constitute structural due process violation
- * ? Award damages for the *manner* of adjudication, not the *outcome*
- * ? Enjoin *future* violations

This distinction -- between challenging the **process** and challenging the **outcome** -- is the key to surviving Rooker-Feldman. *See Bolden v City of Topeka*, 441 F.3d 1129, 1143 (10th Cir 2006) (Section 1983 claims challenging judicial procedures not barred by Rooker-Feldman); *Nesses v Shepard*, 68 F.3d 1003, 1005 (7th Cir 1995) ("a person who loses

in state court may seek damages in federal court for violation of his civil rights during the state-court proceedings").

III. YOUNGER ABSTENTION

A. Rule

Federal courts abstain from interfering with **ongoing** state proceedings that implicate important state interests. *Younger v Harris*, 401 US 37 (1971).

B. Three-Part Test

Younger abstention applies when:

- * There is an **ongoing state judicial proceeding**;
- * The proceeding **implicates important state interests**;
- * There is an **adequate opportunity to raise federal claims** in the state proceeding.

C. Application

Element	Analysis	Conclusion	----- ----- -----	Ongoing state
proceeding	Custody case likely still pending	Probably met		Important state interest
Family	law is a core state interest	Met		Adequate opportunity to raise federal claims
CHALLENGE: Plaintiff has been systematically denied the opportunity to be heard in state				

court -- the 44% ex parte rate demonstrates that the state forum is constitutionally inadequate |
Arguable |

D. Strategy to Overcome Younger

Exception 1: Extraordinary Circumstances / Bad Faith

Younger abstention does not apply where the state proceedings are conducted in **bad faith** or to **harass** the federal plaintiff. *Younger*, 401 US at 54; *Huffman v Pursue, Ltd.*, 420 US 592, 611 (1975).

Argument: The 44% ex parte rate, five ex parte orders in one day, and systematic exclusion of Plaintiff constitute bad faith prosecution of the state proceedings. The state forum itself is the constitutional violator -- abstention would require the victim to seek relief from the perpetrator.

Exception 2: Patently Unconstitutional Statute/Procedure

Abstention is inappropriate where the **state procedures are themselves unconstitutional**. *Younger*, 401 US at 53-54.

Argument: The state procedures as applied -- 44% ex parte, no evidentiary hearings, blanket dismissal of motions -- are themselves the constitutional violation. Abstention makes no sense when the claim IS that the state proceedings are unconstitutional.

Exception 3: No Adequate Opportunity to Raise Federal Claims

Abstention requires an "adequate opportunity" to raise federal claims. If the state forum systematically denies Plaintiff's motions and dismisses them without adjudication, there is no

adequate opportunity.

Argument: Plaintiff's six motions were dismissed without adjudication. His disqualification motion was denied. He has been systematically excluded from proceedings. The state forum has proven inadequate to protect his federal rights.

Timing Strategy

- * If state custody proceedings conclude before federal filing: Younger does not apply to concluded proceedings.
- * **Recommended:** File federal complaint after state proceedings conclude (after MSC decision) to eliminate Younger issue entirely.
- * **Alternative:** File now with strong arguments for the exceptions above.

IV. DOMESTIC RELATIONS EXCEPTION

A. Rule

Federal courts generally decline jurisdiction over cases involving the issuance of divorce, alimony, or child custody decrees. *Ankenbrandt v Richards*, 504 US 689 (1992).

B. Scope of Exception (Narrow)

The domestic relations exception is **narrow** and applies only when the federal court is asked to:

- * Issue a divorce
- * Determine alimony
- * Determine child custody

Ankenbrandt, 504 US at 703-04.

C. Application

| Question | Analysis | |-----|-----| | Does the complaint ask the court to determine custody? | **NO** -- asks court to declare the *process* unconstitutional | | Does the complaint ask for tort damages arising from domestic relations? | **YES** -- this is permitted under *Ankenbrandt* | | Is this a Section 1983 civil rights action? | **YES** -- Section 1983 claims are federal questions, not domestic relations matters |

D. Strategy

This is a civil rights case, not a custody case. The complaint does not ask the federal court to determine who should have custody of L.D.W. It asks the court to:

- * Declare that the process used violated the Constitution
- * Award damages for constitutional violations
- * Enjoin future violations

Ankenbrandt itself recognized that tort claims arising from domestic relationships are not barred: "We thus are content to rest our jurisdiction . . . on this narrow ground: that the domestic relations exception encompasses only cases involving the issuance of a divorce,

alimony, or child custody decree." 504 US at 704.

Section 1983 claims challenging the constitutionality of judicial procedures in family court are federal question cases, not domestic relations cases.

V. QUALIFIED IMMUNITY -- NON-JUDICIAL DEFENDANTS

A. Standard

Government officials performing discretionary functions are entitled to qualified immunity unless their conduct violated "clearly established" constitutional rights. *Harlow v Fitzgerald*, 457 US 800 (1982).

Two-Part Test (*Saucier v Katz*, 533 US 194 (2001)):

- * Was a constitutional right violated?
- * Was the right "clearly established" at the time of the conduct?

B. Application to Defendant Barnes (Attorney)

State Action Requirement

Private attorneys do not generally act "under color of state law" for Section 1983 purposes. *Polk County v Dodson*, 454 US 312 (1981).

Exception: A private attorney who conspires with a state actor to deprive a person of constitutional rights acts under color of state law. *Dennis v Sparks*, 449 US 24 (1980).

Strategy: Frame Barnes' conduct as part of a conspiracy with McNeill (a state actor). The consistent pattern of Barnes filing deficient ex parte motions that McNeill rubber-stamped establishes the conspiratorial relationship.

Qualified Immunity

If Barnes is found to be a state actor (through conspiracy), qualified immunity applies. However:

- * The right to notice before deprivation of parental rights was clearly established as of 2024-2025.
- * The right to an evidentiary hearing before custody modification was clearly established.
- * Barnes cannot claim she reasonably believed the ex parte filings were constitutional.

C. Application to FOC Employees

FOC employees who recommended or implemented unconstitutional orders may claim qualified immunity. Analysis:

- * If they merely implemented judicial orders, they may be entitled to quasi-judicial immunity.
- * If they exercised independent discretion (e.g., making recommendations without adequate investigation), qualified immunity applies but can be overcome by showing clearly established rights.

D. Application to Defendant Watson (Private Party)

Watson is not a government actor and cannot claim qualified immunity. However:

* Section 1983 requires action "under color of state law" -- Watson's conduct alone does not meet this.

* Watson is properly named under **Section 1985** (conspiracy) and **Section 1986** (failure to prevent), which do not require state action.

* Watson can also be reached under Section 1983 through the **conspiracy doctrine** (*Dennis v Sparks*).

VI. DEFENSE MATRIX SUMMARY

Defense	Applies To	Strength Against Plaintiff	Plaintiff's Counter-Strategy	Survivability
Judicial Immunity	McNeill	HIGH	Non-judicial acts exception; absence of jurisdiction (functional TPR); prospective relief	MODERATE -- strongest defense
Rooker-Feldman	All claims	MEDIUM	Challenge process, not outcome; damages for manner of adjudication	HIGH -- should survive
Younger Abstention	All claims	MEDIUM-HIGH	(if state case pending)	Bad faith exception; no adequate opportunity; file after state proceedings conclude
Domestic Relations	All claims	LOW	This is a Section 1983 case, not a custody case; <i>Ankenbrandt</i> does not bar civil rights claims	VERY HIGH -- should not be a barrier
Qualified Immunity	Barnes, FOC	MEDIUM	Rights were clearly established; conspiracy doctrine	HIGH -- should overcome
State Action (Barnes)	Barnes	MEDIUM	Conspiracy with state actor (<i>Dennis v Sparks</i>)	MODERATE

VII. RECOMMENDED APPROACH

Priority Strategy

- * **Lead with procedural claims** -- challenge the *process*, not the *outcome*. This avoids Rooker-Feldman.
- * **Focus on prospective injunctive/declaratory relief** against McNeill -- avoids judicial immunity.
- * **Lead the Monell claim** against the County -- no immunity issues.
- * **Time the filing** to avoid Younger -- file after state proceedings conclude if possible.
- * **Frame Barnes through conspiracy** -- *Dennis v Sparks* provides state action nexus.
- * **Seek damages from Watson under Section 1985** -- no state action requirement.

Filing Sequence Recommendation

Option	Timing	Younger	Risk	Strategic Advantage
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None	Eliminates Younger; strongest posture			Option A (Recommended) After MSC resolves state case
Low-Medium	May argue state remedy exhausted at COA level			Option B After COA but before MSC
(concurrent with state proceedings)	High	Must overcome bad-faith exception		Option C Now

*Analysis Date: 2026-03-04 Status: COMPREHENSIVE -- All major defenses analyzed
with counter-strategies*